

Message History (3)

On 5/21/2026 12:02:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012741-051426

Body:

RE: PUBLIC RECORDS REQUEST of May 14, 2026, **Reference # W012741-051426**

Dear Brian C,

The City received the following records request on May 14, 2026.

Subject: Public Records Request — § 7923.600 determination and segregability records for the withholdings under W012663-050426

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

As you are aware, on 2026-05-14 SMPD closed PRA W012663-050426 with the following dispositions:

- Items 1, 3, 4, 5 (records of NCRIC's onward disclosure of SMPD-originated ALPR data to University of the Pacific, Stanford University, and University of San Francisco; scope documentation; sharing agreements; SMPD awareness records): "No responsive records."***
- Items 2 and 6 (audit-log entries for Named-Recipient access; SMPD-side audit-log entries memorializing SMPD's contributions to NCRIC): Withheld under Gov. Code § 7923.600.***

Gov. Code § 7923.600 exempts records of investigations conducted by "any state or local police agency" and investigatory files compiled by "any other state or local police agency." The exemption turns on whether the investigative activity was conducted by a state or local police agency.

University of the Pacific's Chief of Police confirmed in writing on 2026-03-11 (produced by UOP and previously cited in SMPD-facing correspondence) that UOP is a private institution not subject to CPRA. Stanford University and the University of San Francisco are 501(c)(3) private universities; their campus police departments are not § 1798.90.5(f) "public agencies." NCRIC's published Flock transparency portal (captured 2026-04-25) lists UOP, Stanford CA PD, and USF CA PD among 319 outbound recipients of SMPD's contributed data.

A threshold observation on the records sought. The records withheld under W012663 Items 2 and 6 document disclosures of SMPD-originated ALPR data that have already occurred — to University of the Pacific, Stanford University, and University of San Francisco. Withholding the records does not undo those disclosures; it determines only whether the Department will produce records of them. As you are aware, any exemption the Department invokes for these items carries an implicit position on the lawfulness of the

underlying disclosures:

If the Department invokes § 7923.600 — which exempts records of investigations conducted by "a state or local police agency" — the Department is asserting that UOP, Stanford, and USF are state or local police agencies. As you are aware, University of the Pacific's Chief of Police confirmed in writing on 2026-03-11 that UOP is a private institution not subject to the California Public Records Act — a direct statement by the institution itself that it is not a public agency. If the Department's § 7923.600 invocation nonetheless rests on a determination that UOP is a state or local police agency, the Department should identify the authority under which that institution qualifies, explain how that determination is consistent with UOP's own written position, and state whether it considers NCRIC's onward disclosures to UOP, Stanford, and USF to have been consistent with Civil Code § 1798.90.55(b)'s restriction on sharing ALPR information except to "another public agency."

If the Department invokes any exemption premised on the recipients not being public agencies, or declines to produce records on any basis that presupposes the recipients are non-public entities, the Department's response should address whether it considers the disclosures themselves to have been consistent with § 1798.90.55(b). This request asks, in part, for records that would reflect the Department's position on exactly that question.

W012663's denial-procedure paragraph asked the Department to address segregability under Gov. Code § 7922.525(b) and, if any portion were denied, to (1) provide specific exemption citations per Gov. Code § 7922.540; (2) identify the withheld record type and volume; (3) indicate whether the denial rested on a claim that the records are held by NCRIC or Flock Safety rather than SMPD; and (4) if the denial invoked Civil Code § 1798.90.55(b) or any similar rationale, state whether SMPD considers NCRIC's onward disclosure to UOP/Stanford/USF to have been lawful and identify the supporting legal authority. The May 14 response addressed (1) by citing § 7923.600; it did not address segregability or (2), (3), or (4).

Cross-references. This request follows W012663-050426 (closed 2026-05-14) and is informed by W012570-041926, W012664-050426, and W012674-050426. The records sought here are distinct from those sought in W012663: this request seeks the Department's analytical and decisional records supporting the W012663 dispositions, not the underlying audit-log records themselves.

Records requested — for the period from 2026-04-01 through the date of production, except where otherwise noted. Item 4 carries no date restriction.

1. § 7923.600 determination records for W012663 Items 2 and 6. Records reflecting the Department's determination that Gov. Code § 7923.600 applies to the records sought under W012663 Items 2 and 6, including (a) any written analysis, memo, email, or communication concerning whether University of the Pacific, Stanford University, or University of San Francisco qualifies as a "state or local police agency" within the meaning of § 7923.600; (b) any written analysis, memo, email, or communication concerning whether SMPD's bulk transmissions to NCRIC under W012663 Item 6 constitute "investigations conducted by" or "investigatory files compiled by" a state or local police agency; and (c) the identity (by title or role) of the SMPD personnel who reviewed and approved the § 7923.600 invocation. If no such records exist, please confirm that the § 7923.600 invocation was made without any written threshold analysis as to the identity of the entity whose activity is at issue.

A legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

California Government Code § 7927.705 exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

2. Segregability analysis records for W012663 Items 2 and 6. Records reflecting the Department's segregability analysis under Gov. Code § 7922.525(b) for the records withheld under W012663 Items 2 and 6 — including (a) any written analysis identifying the specific content within the responsive records that is exempt as investigatory versus non-exempt (e.g., the existence and count of responsive entries, the identifier of the Named Recipient associated with each entry, the date or date range of access, channel and volume metadata); (b) any written determination as to whether non-exempt portions could be produced in redacted form; and (c) any written rationale for declining to produce reasonably segregable non-exempt portions. If no such records exist, please confirm that no segregability analysis was performed.

A legal review of your request was completed by our City Attorney's office, in accordance with Government Code § 7922.525(b). During this review, it was determined that the records you have requested are exempt from disclosure as determined by the following Public Records Act exemptions:

California Government Code § 7927.705 exempts records protected by privileges under the Evidence Code. This includes attorney-client privileged communications pursuant to California Evidence Code section 954.

3. Withholding log for W012663 Items 2 and 6. Records sufficient to identify, for each record withheld under § 7923.600 in response to W012663 Items 2 and 6, the record type (e.g., audit-log line, query log, event-log entry, transmission record), the volume or count, and the date range covered. This information was requested as part of the original W012663 denial-procedure paragraph and was not provided in the May 14 response.

The PRA does not require an agency to create a "privilege log," or list, that identifies the specific records being withheld. The response only needs to identify the legal grounds for nondisclosure [*Haynie v. Superior Court*, supra, 26 Cal.4th at p. 1075].

4. Records of SMPD's position on § 1798.90.55(b) lawfulness. Records reflecting the Department's position on whether NCRIC's onward disclosure of SMPD-originated ALPR data to University of the Pacific, Stanford University, and University of San Francisco is consistent with Civil Code § 1798.90.55(b)'s restriction on sharing ALPR information to non-public entities — including (a) any written analysis, memo, email, or communication addressing that question; (b) any legal opinion, City Attorney communication, or outside-counsel correspondence concerning that question; and (c) any record of communication with NCRIC, Flock Safety, or any of the three Named Recipients concerning that question. This item carries no date restriction. If no such records exist, please confirm that.

No responsive records.

5. Records describing the relationship between W012663 Item 1 and Item 2 responses. Records reflecting the Department's analysis of the relationship between (a) the W012663 Item 1 finding of "no responsive records" for ALPR data NCRIC disclosed to the Named Recipients; and (b) the W012663 Item 2 invocation

of § 7923.600 (which presupposes that responsive records exist) for audit-log entries memorializing the Named Recipients' access to SMPD-originated data. The two findings concern the same underlying disclosure event from opposite ends of the record. If no such analysis exists in writing, please confirm that.

No responsive records.

Anticipated exemption issues

- Penal Code §§ 832.7–832.8 (peace officer personnel records). This request does not seek disciplinary, complaint, or investigation content concerning any individual employee. It seeks records of the Department's analytical and decisional process in responding to W012663 — administrative records, not personnel records under Penal Code § 832.8(a).*
- Attorney-client privilege / attorney work product (Gov. Code § 7927.705). To the extent any responsive record is asserted to be privileged, please segregate and produce any non-privileged portion (Gov. Code § 7922.525(b)) and identify the asserted privilege with the specificity required by Gov. Code § 7922.540. The fact that a privileged communication occurred (e.g., a legal opinion was prepared on date X by counsel Y on subject Z) is itself non-exempt under *Roberts v. City of Palmdale* (1993) 5 Cal.4th 363 and is responsive even if the substantive content of the communication is withheld.*
- Deliberative process privilege (Gov. Code § 7922.000). To the extent invoked, please describe the specific deliberative interest harmed by disclosure for each record withheld, and produce factual portions and final determinations as required by *Times Mirror v. Superior Court* (1991) 53 Cal.3d 1325.*
- Gov. Code § 7923.600 (investigation records). The records sought here are records of the Department's CPRA response process — analytical, administrative, and decisional records — not records of any investigation or investigatory file.*
- Civil Code § 1798.90.55(b). The records sought are the Department's analysis and decision records, not "ALPR information" as defined in § 1798.90.5(c).*
- Segregability (Gov. Code § 7922.525(b)). Gov. Code § 7922.525(b) requires production of any reasonably segregable portion of a record after deletion of exempt portions. Where any responsive record contains both responsive and exempt content, the non-exempt portions are subject to that requirement.*
- Existing records only / no obligation to create new records (Gov. Code § 7922.530). This request seeks existing records only. If no responsive record exists for any item, that itself is a responsive answer; please affirm the search performed and confirm no records were located.*

If any portion is denied, please:

- 1. provide specific exemption citations per Gov. Code § 7922.540;*
- 2. identify the withheld record type and volume; and*
- 3. for each record withheld in whole, describe the segregability analysis performed and identify the specific content within the record that the Department determined could not be produced in redacted form.*

Thank you.

The City has completed its response to your request and we now consider this record request W012741-051426 closed. If you have any questions, or would like to submit a new request for records, please contact the City.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago
Management Analyst
Police
650-522-7600

On 5/14/2026 9:11:28 PM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/14/2026 and given the reference number **W012741-051426** for tracking purposes.

Record(s) Requested: **Subject: Public Records Request — § 7923.600 determination and segregability records for the withholdings under W012663-050426**

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- 2. identify the withheld record type and volume; and**
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Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/14/2026 9:10:28 PM, Brian C wrote:

Request Created on Public Portal